



January 22, 2026

HOUSE BILL No. 1342

DIGEST OF HB 1342 (Updated January 21, 2026 11:52 am - DI 144)

Citations Affected: IC 1-1; IC 14-13; IC 36-2.

Synopsis: County commissioner districts. Requires, after December 31, 2030, the county executive to: (1) adopt an ordinance to divide the county into three districts that meet certain standards; and (2) publish proposed district boundaries and hold a public hearing before an ordinance is adopted. Provides exceptions. Specifies that the county executive may consider geography and the differences in population between each district when dividing the county into districts.

Effective: July 1, 2026.

Yocum, Payne, Errington

January 6, 2026, read first time and referred to Committee on Elections and Apportionment.
January 22, 2026, amended, reported — Do Pass.

HB 1342—LS 7077/DI 144



January 22, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1342

A BILL FOR AN ACT to amend the Indiana Code concerning elections.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 1-1-15.5-4, AS ADDED BY P.L.161-2025,
- 2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 3 JULY 1, 2026]: Sec. 4. (a) This section does not apply to:
- 4 (1) the governor's workforce cabinet established by IC 4-3-27-3;
- 5 (2) the budget committee established by IC 4-12-1-3;
- 6 (3) the simplified sales and use tax agreement entered into in
- 7 accordance with IC 6-2.5-11-5;
- 8 (4) the Indiana state board of education established by
- 9 IC 20-19-2-2.1;
- 10 (5) the Indiana School for the Blind and Visually Impaired board
- 11 established by IC 20-21-3-1;
- 12 (6) the Indiana School for the Deaf board established by
- 13 IC 20-22-3-1;
- 14 (7) a county redistricting commission established under
- 15 IC 36-2-2-4 (**before its expiration on January 1, 2031**) or
- 16 **IC 36-2-2-4.1 (after December 31, 2030)**;
- 17 (8) an economic enhancement district board established under

HB 1342—LS 7077/DI 144



1 IC 36-7-40-5; or

2 (9) the Indiana protection and advocacy services commission
3 established by IC 12-28-1-6.

4 (b) On or before July 1, 2027, and July 1 biennially thereafter, a
5 committee that:

6 (1) is established by the Indiana Code;

7 (2) contains at least one (1) member of the general assembly,
8 other than a legislative standing committee or an interim study
9 committee under IC 2-5;

10 (3) is authorized to exist for at least two (2) years; and

11 (4) does not have an annual reporting requirement, other than the
12 requirements provided in this section, to the executive branch,
13 judicial branch, or the general assembly;

14 shall submit a report to the executive director of the legislative services
15 agency in an electronic format under IC 5-14-6 for review by the
16 interim committee on government in accordance with IC 2-5-1.3-13(g).

17 (c) The report under subsection (b) shall describe:

18 (1) official action taken; and

19 (2) actionable items considered;

20 by the committee during the preceding two (2) years.

21 SECTION 2. IC 14-13-2-7, AS AMENDED BY P.L.104-2022,
22 SECTION 91, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
23 JULY 1, 2026]: Sec. 7. (a) The commission has:

24 (1) before July 1, 2012, five (5) members appointed by the
25 governor; and

26 (2) after June 30, 2012, nine (9) members appointed by the
27 governor.

28 (b) The following requirements apply to the governor's
29 appointments under subsection (a)(1):

30 (1) One (1) member must be a representative of the department of
31 natural resources. The member may not be an employee or elected
32 official of a city, town, or county governmental unit.

33 (2) The remaining four (4) members must meet the following
34 requirements:

35 (A) Four (4) members must reside in a:

36 (i) city;

37 (ii) town; or

38 (iii) township (if the member resides in an unincorporated
39 area of the county);

40 that borders the Little Calumet River.

41 (B) At least three (3) of the members must have a background
42 in:



- (i) construction;
- (ii) project management; or
- (iii) flood control;

or a similar professional background.

(C) A member may not be an employee or elected official of a city, town, or county governmental unit.

(c) The following apply to the membership of the commission after June 30, 2012:

(1) Before August 1, 2012, the governor shall appoint four (4) additional members to the commission for four (4) year terms as follows:

(A) One (1) member nominated by the mayor of the city of Hammond.

(B) One (1) member nominated by the mayor of the city of Gary.

(C) Two (2) members nominated by the board of county commissioners of Lake County.

(2) Notwithstanding section 8 of this chapter, the term of the member described in subsection (b)(1) expires January 7, 2013. The governor shall appoint one (1) member nominated by the department of natural resources for a four (4) year term beginning January 7, 2013.

(3) Notwithstanding section 8 of this chapter, the terms of the members described in subsection (b)(2) expire January 1, 2014. The governor shall appoint for four (4) year terms beginning January 1, 2014, four (4) members, each of whom must have been nominated by the executive of a municipality located in the watershed other than a city described in subdivision (1).

(4) A member appointed to succeed a member appointed under subdivision (1) or (2) must be nominated by the nominating authority that nominated the member's predecessor, and a member appointed to succeed a member appointed under subdivision (3) must be nominated by the executive of a municipality located in the watershed other than a city described in subdivision (1).

(d) The following apply to a member appointed under subsection (c) and to any member appointed to succeed a member appointed under subsection (c):

(1) After July 31, 2012, not more than five (5) members of the commission may belong to the same political party.

(2) Each member must have a background in:

- (A) construction;
- (B) project management;



- 1 (C) flood control; or
- 2 (D) a similar professional background.
- 3 (3) A member may not be an employee or elected official of a
- 4 city, town, or county governmental unit.
- 5 (4) The members:
- 6 (A) appointed under subsection (c)(3); or
- 7 (B) appointed to succeed members appointed under subsection
- 8 (c)(3);
- 9 must be from different municipalities.
- 10 (5) Neither the two (2) members appointed under subsection
- 11 (c)(1)(C) nor any two (2) members appointed to succeed them
- 12 may be from the same district created under IC 36-2-2-4(b)
- 13 **(before its expiration on January 1, 2031) or IC 36-2-2-4.1(c)**
- 14 **(after December 31, 2030).**
- 15 SECTION 3. IC 36-2-1-2, AS AMENDED BY P.L.104-2022,
- 16 SECTION 145, IS AMENDED TO READ AS FOLLOWS
- 17 [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) If the resident voters in a
- 18 specified territory in two (2) or more contiguous counties desire to
- 19 change the boundaries of their respective counties, they may file a
- 20 petition with the executives of their respective counties requesting that
- 21 the territory be transferred. The petition must:
- 22 (1) be signed by at least the number of voters resident in the
- 23 territory requested to be transferred required to place a candidate
- 24 on the ballot under IC 3-8-6-3;
- 25 (2) contain a clear, distinct description of the requested boundary
- 26 change; and
- 27 (3) not propose to decrease the area of any county below four
- 28 hundred (400) square miles in compliance with Article 15,
- 29 Section 7 of the Constitution of the State of Indiana.
- 30 (b) Whenever a petition under subsection (a) is filed with a county
- 31 executive, the executive shall determine, at its first meeting after the
- 32 petition is filed:
- 33 (1) whether the signatures on the petition are genuine; and
- 34 (2) whether the petition complies with subsection (a).
- 35 (c) If the determinations under subsection (b) are affirmative, the
- 36 executive shall certify the question to the county election board of each
- 37 affected county. The county election boards shall jointly order a special
- 38 election to be held, scheduling the election so that the election is held
- 39 on the same date in each county interested in the change, but not later
- 40 than thirty (30) days and not on the same date as a general election. The
- 41 election shall be conducted under IC 3-10-8-6. All voters of each
- 42 interested county are entitled to vote on the question. The question



1 shall be placed on the ballot in the form prescribed by IC 3-10-9-4 and
 2 must state "Shall the boundaries of _____ County and
 3 _____ County change?".

4 (d) After an election under subsection (c), the clerk of each county
 5 shall make a certified copy of the election returns and not later than
 6 five (5) days after the election file the copy with the auditor of the
 7 county. The auditor shall, not later than five (5) days after the filing of
 8 the returns in the auditor's office, make a true and complete copy of the
 9 returns, certified under the auditor's hand and seal, and deposit the copy
 10 with the auditor of every other county interested in the change.

11 (e) After copies have been filed under subsection (d), the auditor of
 12 each county shall call a meeting of the executive of the county, which
 13 shall examine the returns. If a majority of the voters of each interested
 14 county voted in favor of change, the executive shall:

15 (1) enter an order declaring their boundaries to be changed as
 16 described in the petition; and

17 (2) if the county has received territory from the transfer, adopt
 18 revised descriptions of:

19 (A) county commissioner districts under IC 36-2-2-4 (**before**
 20 **its expiration on January 1, 2031) or IC 36-2-2-4.1 (after**
 21 **December 31, 2030); and**

22 (B) county council districts under IC 36-2-3-4;

23 so that the transferred territory is assigned to at least one (1) county
 24 commissioner district and at least one (1) county council district.

25 (f) The executive of each county shall file a copy of the order
 26 described in subsection (e)(1) with:

27 (1) the office of the secretary of state; and

28 (2) the circuit court clerk of the county.

29 The transfer of territory becomes effective when the last county order
 30 is filed under this subsection.

31 (g) An election under this section may be held only once every three
 32 (3) years.

33 SECTION 4. IC 36-2-2-4, AS AMENDED BY P.L.230-2025,
 34 SECTION 139, IS AMENDED TO READ AS FOLLOWS
 35 [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) This subsection does not
 36 apply to the following counties:

37 (1) A county having a population of more than four hundred fifty
 38 thousand (450,000) and less than seven hundred thousand
 39 (700,000).

40 (2) A county having a population of more than one hundred
 41 eighty-five thousand (185,000) and less than three hundred
 42 thousand (300,000).



The executive shall divide the county into three (3) districts that are composed of contiguous territory and are reasonably compact. The district boundaries drawn by the executive must not cross precinct boundary lines and must divide townships only when a division is clearly necessary to accomplish redistricting under this section. If necessary, the county auditor shall call a special meeting of the executive to establish or revise districts.

(b) This subsection applies to a county having a population of more than four hundred fifty thousand (450,000) and less than seven hundred thousand (700,000). A county redistricting commission shall divide the county into three (3) single-member districts that comply with subsection (d). The commission is composed of:

- (1) the members of the Indiana election commission;
- (2) two (2) members of the senate selected by the president pro tempore, one (1) from each political party; and
- (3) two (2) members of the house of representatives selected by the speaker, one (1) from each political party.

The legislative members of the commission have no vote and may act only in an advisory capacity. A majority vote of the voting members is required for the commission to take action. The commission may meet as frequently as necessary to perform its duty under this subsection. The commission's members serve without additional compensation above that provided for them as members of the Indiana election commission, the senate, or the house of representatives.

(c) This subsection applies to a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government described in subsection (d), sections 4.7(c) and 5(d)(2) of this chapter, IC 36-2-3-2(b), IC 36-2-3-4(c), and IC 36-2-3.5-1(2) by passing a resolution by a majority vote of its executive body not later than September 1, 2023. In the event the executive body of a county described in this subsection does not opt in by September 1, 2023, the county shall be governed by the general provisions of this chapter. The executive shall divide the county into three (3) single-member districts that comply with subsection (d).

(d) Single-member districts established under subsection (b) or (c) must:

- (1) be compact, subject only to natural boundary lines (such as railroads, major highways, rivers, creeks, parks, and major industrial complexes);
- (2) contain, as nearly as is possible, equal population; and
- (3) not cross precinct lines.



(e) Except as provided by subsection (f), a division under subsection (a), (b), or (c) shall be made only at times permitted under IC 3-5-10.

(f) If the county executive or county redistricting commission determines that a division under subsection (e) is not required, the county executive or county redistricting commission shall adopt an ordinance recertifying that the districts as drawn comply with this section.

(g) Each time there is a division under subsection (e) or a recertification under subsection (f), the county executive or county redistricting commission shall file with the circuit court clerk of the county, not later than thirty (30) days after the division or recertification occurs, a map of the district boundaries:

(1) adopted under subsection (e); or

(2) recertified under subsection (f).

(h) The limitations set forth in this section are part of the ordinance, but do not have to be specifically set forth in the ordinance. The ordinance must be construed, if possible, to comply with this chapter. If a provision of the ordinance or an application of the ordinance violates this chapter, the invalidity does not affect the other provisions or applications of the ordinance that can be given effect without the invalid provision or application. The provisions of the ordinance are severable.

(i) IC 3-5-10 applies to a plan established under this section.

(j) This section expires January 1, 2031.

SECTION 5. IC 36-2-2-4.1 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.1. (a) This section applies after December 31, 2030.**

(b) This subsection does not apply to a county having a population of more than four hundred fifty thousand (450,000) and less than seven hundred thousand (700,000), or a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000). The executive shall adopt an ordinance to divide the county into three (3) districts. The following apply to districts established or revised under this subsection:

(1) The executive shall:

(A) publish proposed district boundaries; and

(B) hold a public hearing concerning proposed district boundaries;

before adopting an ordinance to establish or revise districts.

(2) Districts must be:

(A) composed of contiguous territory; and



- 1 (B) reasonably compact.
- 2 (3) District boundaries must:
- 3 (A) not cross precinct boundary lines; and
- 4 (B) divide townships only when a division is clearly
- 5 necessary to accomplish redistricting under this section.
- 6 (4) When dividing the county into districts, the executive may
- 7 consider:
- 8 (A) geography; and
- 9 (B) the differences in population between each district.
- 10 (c) This subsection applies to a county having a population of
- 11 more than four hundred fifty thousand (450,000) and less than
- 12 seven hundred thousand (700,000). A county redistricting
- 13 commission shall divide the county into three (3) single-member
- 14 districts that comply with subsection (e). The commission is
- 15 composed of:
- 16 (1) the members of the Indiana election commission;
- 17 (2) two (2) members of the senate selected by the president
- 18 pro tempore, one (1) from each political party; and
- 19 (3) two (2) members of the house of representatives selected
- 20 by the speaker, one (1) from each political party.
- 21 The legislative members of the commission have no vote and may
- 22 act only in an advisory capacity. A majority vote of the voting
- 23 members is required for the commission to take action. The
- 24 commission may meet as frequently as necessary to perform its
- 25 duty under this subsection. The commission's members serve
- 26 without additional compensation above that provided for them as
- 27 members of the Indiana election commission, the senate, or the
- 28 house of representatives.
- 29 (d) This subsection applies to a county having a population of
- 30 more than one hundred eighty-five thousand (185,000) and less
- 31 than three hundred thousand (300,000) that opts in to the system
- 32 of county government described in subsection (e), sections 4.7(c)
- 33 and 5(d)(2) of this chapter, IC 36-2-3-2(b), IC 36-2-3-4(c), and
- 34 IC 36-2-3.5-1(2) by passing a resolution by a majority vote of its
- 35 executive body not later than September 1, 2023. In the event the
- 36 executive body of a county described in this subsection does not opt
- 37 in by September 1, 2023, the county shall be governed by the
- 38 general provisions of this chapter. The executive shall divide the
- 39 county into three (3) single-member districts that comply with
- 40 subsection (e).
- 41 (e) Single-member districts established under subsection (c) or
- 42 (d) must:



(1) be compact, subject only to natural boundary lines (such as railroads, major highways, rivers, creeks, parks, and major industrial complexes);

(2) contain, as nearly as is possible, equal population; and

(3) not cross precinct lines.

(f) Except as provided by subsection (g), a division under subsection (b), (c), or (d) shall be made only at times permitted under IC 3-5-10.

(g) If the county executive or county redistricting commission determines that a division under subsection (f) is not required, the county executive or county redistricting commission shall adopt an ordinance recertifying that the districts as drawn comply with this section.

(h) Each time there is a division under subsection (f) or a recertification under subsection (g), the county executive or county redistricting commission shall file with the circuit court clerk of the county, not later than thirty (30) days after the division or recertification occurs, a map of the district boundaries:

(1) adopted under subsection (f); or

(2) recertified under subsection (g).

(i) The limitations set forth in this section are part of the ordinance, but do not have to be specifically set forth in the ordinance. The ordinance must be construed, if possible, to comply with this chapter. If a provision of the ordinance or an application of the ordinance violates this chapter, the invalidity does not affect the other provisions or applications of the ordinance that can be given effect without the invalid provision or application. The provisions of the ordinance are severable.

(j) IC 3-5-10 applies to a plan established under this section.

SECTION 6. IC 36-2-2-4.7, AS AMENDED BY P.L.201-2023, SECTION 266, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.7. (a) Except as provided in subsection (c), whenever the executive divides the county into districts under section 4 **(before its expiration on January 1, 2031) or 4.1 (after December 31, 2030)** of this chapter, the executive shall adopt an ordinance.

(b) The executive shall file a copy of an ordinance adopted under subsection (a) with the circuit court clerk.

(c) This subsection applies to a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in section 4(c) **(before its expiration on**



January 1, 2031) or 4.1(d) (after December 31, 2030) of this chapter. Whenever the executive divides the county into districts under section 4 **(before its expiration on January 1, 2031) or 4.1 (after December 31, 2030)** of this chapter, the executive shall adopt a resolution at two (2) separate public meetings. The executive shall file a copy of the resolution adopted under this subsection with the circuit court clerk.

SECTION 7. IC 36-2-2-5, AS AMENDED BY P.L.230-2025, SECTION 140, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) To be eligible for election to the executive, a person must meet the qualifications prescribed by IC 3-8-1-21.

(b) A member of the executive must reside within:

- (1) the county as provided in Article 6, Section 6 of the Constitution of the State of Indiana; and
- (2) the district from which the member was elected.

(c) If the person does not remain a resident of the county and district after taking office, the person forfeits the office. The county fiscal body shall declare the office vacant whenever a member of the executive forfeits office under this subsection.

(d) In a county having a population of:

- (1) more than four hundred fifty thousand (450,000) and less than seven hundred thousand (700,000); or
- (2) more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in section 4(c) **(before its expiration on January 1, 2031) or 4.1(d) (after December 31, 2030)** of this chapter;

one (1) member of the executive shall be elected by the voters of each of the three (3) single-member districts established under section 4(b) or 4(c) of this chapter **(before its expiration on January 1, 2031) or 4.1(c) or 4.1(d) of this chapter (after December 31, 2030)**. In other counties, all three (3) members of the executive shall be elected by the voters of the whole county.

SECTION 8. IC 36-2-3-2, AS AMENDED BY P.L.201-2023, SECTION 268, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The seven (7) member county council elected under this chapter is the county fiscal body. The fiscal body shall act in the name of "The _____ County Council".

(b) Notwithstanding subsection (a), in a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in IC 36-2-2-4(c) **(before its expiration on**



1 **January 1, 2031) or IC 36-2-2-4.1(d) (after December 31, 2030),** the
 2 county council has nine (9) members.

3 SECTION 9. IC 36-2-3-4, AS AMENDED BY P.L.201-2023,
 4 SECTION 269, IS AMENDED TO READ AS FOLLOWS
 5 [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) This subsection does not
 6 apply to the following counties:

7 (1) A county having a population of more than four hundred
 8 thousand (400,000) and less than seven hundred thousand
 9 (700,000).

10 (2) A county having a population of more than one hundred
 11 eighty-five thousand (185,000) and less than three hundred
 12 thousand (300,000) that opts in to the system of county
 13 government as described in IC 36-2-2-4(c) **(before its expiration**
 14 **on January 1, 2031) or IC 36-2-2-4.1(d) (after December 31,**
 15 **2030).**

16 The county executive shall, by ordinance, divide the county into four
 17 (4) single-member districts that comply with subsection (d). If
 18 necessary, the county auditor shall call a special meeting of the
 19 executive to establish or revise districts. One (1) member of the fiscal
 20 body shall be elected by the voters of each of the four (4) districts.
 21 Three (3) at-large members of the fiscal body shall be elected by the
 22 voters of the whole county.

23 (b) This subsection applies to a county having a population of more
 24 than four hundred thousand (400,000) and less than seven hundred
 25 thousand (700,000). The county redistricting commission established
 26 under IC 36-2-2-4 **(before its expiration on January 1, 2031) or**
 27 **IC 36-2-2-4.1 (after December 31, 2030)** shall divide the county into
 28 seven (7) single-member districts that comply with subsection (d). One
 29 (1) member of the fiscal body shall be elected by the voters of each of
 30 these seven (7) single-member districts.

31 (c) This subsection applies to a county having a population of more
 32 than one hundred eighty-five thousand (185,000) and less than three
 33 hundred thousand (300,000) that opts in to the system of county
 34 government described in IC 36-2-2-4(c) **(before its expiration on**
 35 **January 1, 2031) or IC 36-2-2-4.1(d) (after December 31, 2030).**
 36 The fiscal body shall divide the county into nine (9) single-member
 37 districts that comply with subsection (d). Three (3) of these districts
 38 must be contained within each of the three (3) districts established
 39 under IC 36-2-2-4(c) **(before its expiration on January 1, 2031) or**
 40 **IC 36-2-2-4.1(d) (after December 31, 2030).** One (1) member of the
 41 fiscal body shall be elected by the voters of each of these nine (9)
 42 single-member districts.



(d) Single-member districts established under subsection (a), (b), or (c) must:

- (1) be compact and be composed of contiguous territory, subject only to natural boundary lines (such as railroads, major highways, rivers, creeks, parks, and major industrial complexes);
- (2) not cross precinct boundary lines;
- (3) contain, as nearly as possible, equal population; and
- (4) include whole townships, except when a division is clearly necessary to accomplish redistricting under this section.

(e) Except as provided by subsection (f), a division under subsection (a), (b), or (c) shall be made only at times permitted under IC 3-5-10.

(f) If the county executive, county redistricting commission, or county fiscal body determines that a division under subsection (e) is not required, the county executive, county redistricting commission, or county fiscal body shall adopt an ordinance recertifying that the districts as drawn comply with this section.

(g) Each time there is a division under subsection (e) or a recertification under subsection (f), the county executive, county redistricting commission, or county fiscal body shall file with the circuit court clerk of the county, not later than thirty (30) days after the division or recertification occurs, a map of the district boundaries:

- (1) adopted under subsection (e); or
- (2) recertified under subsection (f).

(h) The limitations set forth in this section are part of the ordinance, but do not have to be specifically set forth in the ordinance. The ordinance must be construed, if possible, to comply with this chapter. If a provision of the ordinance or an application of the ordinance violates this chapter, the invalidity does not affect the other provisions or applications of the ordinance that can be given effect without the invalid provision or application. The provisions of the ordinance are severable.

(i) IC 3-5-10 applies to a plan established under this section.

SECTION 10. IC 36-2-3.5-1, AS AMENDED BY P.L.230-2025, SECTION 141, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. This chapter applies to the following counties:

- (1) A county having a population of more than four hundred fifty thousand (450,000) and less than seven hundred thousand (700,000).
- (2) A county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county



1 government as described in IC 36-2-2-4(c) **(before its expiration**
2 **on January 1, 2031) or IC 36-2-2-4.1(d) (after December 31,**
3 **2030).**

4 (3) Any other county not having a consolidated city, if both the
5 county executive and the county fiscal body adopt identical
6 ordinances providing for the county to be governed by this
7 chapter beginning on a specified effective date.

8 SECTION 11. IC 36-2-3.5-6 IS AMENDED TO READ AS
9 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) A court may issue
10 an order, before final hearing, to stay an election if there is sufficient
11 evidence to withstand a motion for summary judgment that the county
12 has not been divided into districts that comply with IC 36-2-2-4
13 **(before its expiration on January 1, 2031), IC 36-2-2-4.1(d) (after**
14 **December 31, 2030),** or IC 36-2-3-4. A preliminary hearing on the
15 question may be held upon the court's own motion.

16 (b) Final judgment on the merits in such a case shall be made within
17 thirty (30) days of the stay of election order. If the redistricting is found
18 not to be in compliance with law, the court shall retain jurisdiction and
19 shall order the proper officials to submit within thirty (30) days a
20 redistricting plan complying with law. If the proper officials fail to
21 comply with the order, the court shall order the Indiana election
22 commission to divide the county into districts in compliance with law.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Elections and Apportionment, to which was referred House Bill 1342, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Replace the effective date in SECTION 3 with "[EFFECTIVE JULY 1, 2026]".

Page 1, delete lines 1 through 17, begin a new paragraph and insert: "SECTION 1. IC 1-1-15.5-4, AS ADDED BY P.L.161-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) This section does not apply to:

- (1) the governor's workforce cabinet established by IC 4-3-27-3;
- (2) the budget committee established by IC 4-12-1-3;
- (3) the simplified sales and use tax agreement entered into in accordance with IC 6-2.5-11-5;
- (4) the Indiana state board of education established by IC 20-19-2-2.1;
- (5) the Indiana School for the Blind and Visually Impaired board established by IC 20-21-3-1;
- (6) the Indiana School for the Deaf board established by IC 20-22-3-1;
- (7) a county redistricting commission established under IC 36-2-2-4 **(before its expiration on January 1, 2031) or IC 36-2-2-4.1 (after December 31, 2030);**
- (8) an economic enhancement district board established under IC 36-7-40-5; or
- (9) the Indiana protection and advocacy services commission established by IC 12-28-1-6.

(b) On or before July 1, 2027, and July 1 biennially thereafter, a committee that:

- (1) is established by the Indiana Code;
- (2) contains at least one (1) member of the general assembly, other than a legislative standing committee or an interim study committee under IC 2-5;
- (3) is authorized to exist for at least two (2) years; and
- (4) does not have an annual reporting requirement, other than the requirements provided in this section, to the executive branch, judicial branch, or the general assembly;

shall submit a report to the executive director of the legislative services agency in an electronic format under IC 5-14-6 for review by the interim committee on government in accordance with IC 2-5-1.3-13(g).



(c) The report under subsection (b) shall describe:

- (1) official action taken; and
- (2) actionable items considered;

by the committee during the preceding two (2) years.

SECTION 2. IC 14-13-2-7, AS AMENDED BY P.L.104-2022, SECTION 91, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) The commission has:

- (1) before July 1, 2012, five (5) members appointed by the governor; and
- (2) after June 30, 2012, nine (9) members appointed by the governor.

(b) The following requirements apply to the governor's appointments under subsection (a)(1):

- (1) One (1) member must be a representative of the department of natural resources. The member may not be an employee or elected official of a city, town, or county governmental unit.
- (2) The remaining four (4) members must meet the following requirements:

(A) Four (4) members must reside in a:

- (i) city;
- (ii) town; or
- (iii) township (if the member resides in an unincorporated area of the county);

that borders the Little Calumet River.

(B) At least three (3) of the members must have a background in:

- (i) construction;
- (ii) project management; or
- (iii) flood control;

or a similar professional background.

(C) A member may not be an employee or elected official of a city, town, or county governmental unit.

(c) The following apply to the membership of the commission after June 30, 2012:

- (1) Before August 1, 2012, the governor shall appoint four (4) additional members to the commission for four (4) year terms as follows:

(A) One (1) member nominated by the mayor of the city of Hammond.

(B) One (1) member nominated by the mayor of the city of Gary.

(C) Two (2) members nominated by the board of county



commissioners of Lake County.

(2) Notwithstanding section 8 of this chapter, the term of the member described in subsection (b)(1) expires January 7, 2013. The governor shall appoint one (1) member nominated by the department of natural resources for a four (4) year term beginning January 7, 2013.

(3) Notwithstanding section 8 of this chapter, the terms of the members described in subsection (b)(2) expire January 1, 2014. The governor shall appoint for four (4) year terms beginning January 1, 2014, four (4) members, each of whom must have been nominated by the executive of a municipality located in the watershed other than a city described in subdivision (1).

(4) A member appointed to succeed a member appointed under subdivision (1) or (2) must be nominated by the nominating authority that nominated the member's predecessor, and a member appointed to succeed a member appointed under subdivision (3) must be nominated by the executive of a municipality located in the watershed other than a city described in subdivision (1).

(d) The following apply to a member appointed under subsection (c) and to any member appointed to succeed a member appointed under subsection (c):

(1) After July 31, 2012, not more than five (5) members of the commission may belong to the same political party.

(2) Each member must have a background in:

- (A) construction;
- (B) project management;
- (C) flood control; or
- (D) a similar professional background.

(3) A member may not be an employee or elected official of a city, town, or county governmental unit.

(4) The members:

- (A) appointed under subsection (c)(3); or
- (B) appointed to succeed members appointed under subsection (c)(3);

must be from different municipalities.

(5) Neither the two (2) members appointed under subsection (c)(1)(C) nor any two (2) members appointed to succeed them may be from the same district created under IC 36-2-2-4(b) **(before its expiration on January 1, 2031) or IC 36-2-2-4.1(c) (after December 31, 2030).**

SECTION 3. IC 36-2-1-2, AS AMENDED BY P.L.104-2022, SECTION 145, IS AMENDED TO READ AS FOLLOWS

HB 1342—LS 7077/DI 144



[EFFECTIVE JULY 1, 2026]: Sec. 2. (a) If the resident voters in a specified territory in two (2) or more contiguous counties desire to change the boundaries of their respective counties, they may file a petition with the executives of their respective counties requesting that the territory be transferred. The petition must:

- (1) be signed by at least the number of voters resident in the territory requested to be transferred required to place a candidate on the ballot under IC 3-8-6-3;
- (2) contain a clear, distinct description of the requested boundary change; and
- (3) not propose to decrease the area of any county below four hundred (400) square miles in compliance with Article 15, Section 7 of the Constitution of the State of Indiana.

(b) Whenever a petition under subsection (a) is filed with a county executive, the executive shall determine, at its first meeting after the petition is filed:

- (1) whether the signatures on the petition are genuine; and
- (2) whether the petition complies with subsection (a).

(c) If the determinations under subsection (b) are affirmative, the executive shall certify the question to the county election board of each affected county. The county election boards shall jointly order a special election to be held, scheduling the election so that the election is held on the same date in each county interested in the change, but not later than thirty (30) days and not on the same date as a general election. The election shall be conducted under IC 3-10-8-6. All voters of each interested county are entitled to vote on the question. The question shall be placed on the ballot in the form prescribed by IC 3-10-9-4 and must state "Shall the boundaries of _____ County and _____ County change?".

(d) After an election under subsection (c), the clerk of each county shall make a certified copy of the election returns and not later than five (5) days after the election file the copy with the auditor of the county. The auditor shall, not later than five (5) days after the filing of the returns in the auditor's office, make a true and complete copy of the returns, certified under the auditor's hand and seal, and deposit the copy with the auditor of every other county interested in the change.

(e) After copies have been filed under subsection (d), the auditor of each county shall call a meeting of the executive of the county, which shall examine the returns. If a majority of the voters of each interested county voted in favor of change, the executive shall:

- (1) enter an order declaring their boundaries to be changed as described in the petition; and



(2) if the county has received territory from the transfer, adopt revised descriptions of:

(A) county commissioner districts under IC 36-2-2-4 **(before its expiration on January 1, 2031) or IC 36-2-2-4.1 (after December 31, 2030)**; and

(B) county council districts under IC 36-2-3-4;

so that the transferred territory is assigned to at least one (1) county commissioner district and at least one (1) county council district.

(f) The executive of each county shall file a copy of the order described in subsection (e)(1) with:

(1) the office of the secretary of state; and

(2) the circuit court clerk of the county.

The transfer of territory becomes effective when the last county order is filed under this subsection.

(g) An election under this section may be held only once every three (3) years."

Page 2, delete lines 1 through 37.

Page 3, delete lines 6 through 13, begin a new line blocked left and insert:

"The executive shall divide the county into three (3) districts that are composed of contiguous territory and are reasonably compact. The district boundaries drawn by the executive must not cross precinct boundary lines and must divide townships only when a division is clearly necessary to accomplish redistricting under this section. If necessary, the county auditor shall call a special meeting of the executive to establish or revise districts."

Page 4, after line 29, begin a new paragraph and insert:

"(j) This section expires January 1, 2031.

SECTION 5. IC 36-2-2-4.1 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.1. (a) This section applies after December 31, 2030.**

(b) This subsection does not apply to a county having a population of more than four hundred fifty thousand (450,000) and less than seven hundred thousand (700,000), or a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000). The executive shall adopt an ordinance to divide the county into three (3) districts. The following apply to districts established or revised under this subsection:

(1) The executive shall:

(A) publish proposed district boundaries; and

(B) hold a public hearing concerning proposed district



boundaries;
before adopting an ordinance to establish or revise districts.

(2) Districts must be:

(A) composed of contiguous territory; and

(B) reasonably compact.

(3) District boundaries must:

(A) not cross precinct boundary lines; and

(B) divide townships only when a division is clearly necessary to accomplish redistricting under this section.

(4) When dividing the county into districts, the executive may consider:

(A) geography; and

(B) the differences in population between each district.

(c) This subsection applies to a county having a population of more than four hundred fifty thousand (450,000) and less than seven hundred thousand (700,000). A county redistricting commission shall divide the county into three (3) single-member districts that comply with subsection (e). The commission is composed of:

(1) the members of the Indiana election commission;

(2) two (2) members of the senate selected by the president pro tempore, one (1) from each political party; and

(3) two (2) members of the house of representatives selected by the speaker, one (1) from each political party.

The legislative members of the commission have no vote and may act only in an advisory capacity. A majority vote of the voting members is required for the commission to take action. The commission may meet as frequently as necessary to perform its duty under this subsection. The commission's members serve without additional compensation above that provided for them as members of the Indiana election commission, the senate, or the house of representatives.

(d) This subsection applies to a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government described in subsection (e), sections 4.7(c) and 5(d)(2) of this chapter, IC 36-2-3-2(b), IC 36-2-3-4(c), and IC 36-2-3.5-1(2) by passing a resolution by a majority vote of its executive body not later than September 1, 2023. In the event the executive body of a county described in this subsection does not opt in by September 1, 2023, the county shall be governed by the general provisions of this chapter. The executive shall divide the



county into three (3) single-member districts that comply with subsection (e).

(e) Single-member districts established under subsection (c) or (d) must:

- (1) be compact, subject only to natural boundary lines (such as railroads, major highways, rivers, creeks, parks, and major industrial complexes);
- (2) contain, as nearly as is possible, equal population; and
- (3) not cross precinct lines.

(f) Except as provided by subsection (g), a division under subsection (b), (c), or (d) shall be made only at times permitted under IC 3-5-10.

(g) If the county executive or county redistricting commission determines that a division under subsection (f) is not required, the county executive or county redistricting commission shall adopt an ordinance recertifying that the districts as drawn comply with this section.

(h) Each time there is a division under subsection (f) or a recertification under subsection (g), the county executive or county redistricting commission shall file with the circuit court clerk of the county, not later than thirty (30) days after the division or recertification occurs, a map of the district boundaries:

- (1) adopted under subsection (f); or
- (2) recertified under subsection (g).

(i) The limitations set forth in this section are part of the ordinance, but do not have to be specifically set forth in the ordinance. The ordinance must be construed, if possible, to comply with this chapter. If a provision of the ordinance or an application of the ordinance violates this chapter, the invalidity does not affect the other provisions or applications of the ordinance that can be given effect without the invalid provision or application. The provisions of the ordinance are severable.

(j) IC 3-5-10 applies to a plan established under this section.

SECTION 6. IC 36-2-2-4.7, AS AMENDED BY P.L.201-2023, SECTION 266, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.7. (a) Except as provided in subsection (c), whenever the executive divides the county into districts under section 4 **(before its expiration on January 1, 2031) or 4.1 (after December 31, 2030)** of this chapter, the executive shall adopt an ordinance.

(b) The executive shall file a copy of an ordinance adopted under subsection (a) with the circuit court clerk.



(c) This subsection applies to a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in section 4(c) **(before its expiration on January 1, 2031) or 4.1(d) (after December 31, 2030)** of this chapter. Whenever the executive divides the county into districts under section 4 **(before its expiration on January 1, 2031) or 4.1 (after December 31, 2030)** of this chapter, the executive shall adopt a resolution at two (2) separate public meetings. The executive shall file a copy of the resolution adopted under this subsection with the circuit court clerk.

SECTION 7. IC 36-2-2-5, AS AMENDED BY P.L.230-2025, SECTION 140, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) To be eligible for election to the executive, a person must meet the qualifications prescribed by IC 3-8-1-21.

(b) A member of the executive must reside within:

- (1) the county as provided in Article 6, Section 6 of the Constitution of the State of Indiana; and
- (2) the district from which the member was elected.

(c) If the person does not remain a resident of the county and district after taking office, the person forfeits the office. The county fiscal body shall declare the office vacant whenever a member of the executive forfeits office under this subsection.

(d) In a county having a population of:

- (1) more than four hundred fifty thousand (450,000) and less than seven hundred thousand (700,000); or
- (2) more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in section 4(c) **(before its expiration on January 1, 2031) or 4.1(d) (after December 31, 2030)** of this chapter;

one (1) member of the executive shall be elected by the voters of each of the three (3) single-member districts established under section 4(b) or 4(c) of this chapter **(before its expiration on January 1, 2031) or 4.1(c) or 4.1(d) of this chapter (after December 31, 2030)**. In other counties, all three (3) members of the executive shall be elected by the voters of the whole county.

SECTION 8. IC 36-2-3-2, AS AMENDED BY P.L.201-2023, SECTION 268, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The seven (7) member county council elected under this chapter is the county fiscal body. The fiscal body shall act in the name of "The _____ County Council".



(b) Notwithstanding subsection (a), in a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in IC 36-2-2-4(c) **(before its expiration on January 1, 2031) or IC 36-2-2-4.1(d) (after December 31, 2030)**, the county council has nine (9) members.

SECTION 9. IC 36-2-3-4, AS AMENDED BY P.L.201-2023, SECTION 269, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) This subsection does not apply to the following counties:

- (1) A county having a population of more than four hundred thousand (400,000) and less than seven hundred thousand (700,000).
- (2) A county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in IC 36-2-2-4(c) **(before its expiration on January 1, 2031) or IC 36-2-2-4.1(d) (after December 31, 2030)**.

The county executive shall, by ordinance, divide the county into four (4) single-member districts that comply with subsection (d). If necessary, the county auditor shall call a special meeting of the executive to establish or revise districts. One (1) member of the fiscal body shall be elected by the voters of each of the four (4) districts. Three (3) at-large members of the fiscal body shall be elected by the voters of the whole county.

(b) This subsection applies to a county having a population of more than four hundred thousand (400,000) and less than seven hundred thousand (700,000). The county redistricting commission established under IC 36-2-2-4 **(before its expiration on January 1, 2031) or IC 36-2-2-4.1 (after December 31, 2030)** shall divide the county into seven (7) single-member districts that comply with subsection (d). One (1) member of the fiscal body shall be elected by the voters of each of these seven (7) single-member districts.

(c) This subsection applies to a county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government described in IC 36-2-2-4(c) **(before its expiration on January 1, 2031) or IC 36-2-2-4.1(d) (after December 31, 2030)**. The fiscal body shall divide the county into nine (9) single-member districts that comply with subsection (d). Three (3) of these districts must be contained within each of the three (3) districts established



under IC 36-2-2-4(c) **(before its expiration on January 1, 2031) or IC 36-2-2-4.1(d) (after December 31, 2030)**. One (1) member of the fiscal body shall be elected by the voters of each of these nine (9) single-member districts.

(d) Single-member districts established under subsection (a), (b), or (c) must:

- (1) be compact and be composed of contiguous territory, subject only to natural boundary lines (such as railroads, major highways, rivers, creeks, parks, and major industrial complexes);
- (2) not cross precinct boundary lines;
- (3) contain, as nearly as possible, equal population; and
- (4) include whole townships, except when a division is clearly necessary to accomplish redistricting under this section.

(e) Except as provided by subsection (f), a division under subsection (a), (b), or (c) shall be made only at times permitted under IC 3-5-10.

(f) If the county executive, county redistricting commission, or county fiscal body determines that a division under subsection (e) is not required, the county executive, county redistricting commission, or county fiscal body shall adopt an ordinance recertifying that the districts as drawn comply with this section.

(g) Each time there is a division under subsection (e) or a recertification under subsection (f), the county executive, county redistricting commission, or county fiscal body shall file with the circuit court clerk of the county, not later than thirty (30) days after the division or recertification occurs, a map of the district boundaries:

- (1) adopted under subsection (e); or
- (2) recertified under subsection (f).

(h) The limitations set forth in this section are part of the ordinance, but do not have to be specifically set forth in the ordinance. The ordinance must be construed, if possible, to comply with this chapter. If a provision of the ordinance or an application of the ordinance violates this chapter, the invalidity does not affect the other provisions or applications of the ordinance that can be given effect without the invalid provision or application. The provisions of the ordinance are severable.

(i) IC 3-5-10 applies to a plan established under this section.

SECTION 10. IC 36-2-3.5-1, AS AMENDED BY P.L.230-2025, SECTION 141, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. This chapter applies to the following counties:

- (1) A county having a population of more than four hundred fifty thousand (450,000) and less than seven hundred thousand



(700,000).

(2) A county having a population of more than one hundred eighty-five thousand (185,000) and less than three hundred thousand (300,000) that opts in to the system of county government as described in IC 36-2-2-4(c) **(before its expiration on January 1, 2031) or IC 36-2-2-4.1(d) (after December 31, 2030).**

(3) Any other county not having a consolidated city, if both the county executive and the county fiscal body adopt identical ordinances providing for the county to be governed by this chapter beginning on a specified effective date.

SECTION 11. IC 36-2-3.5-6 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) A court may issue an order, before final hearing, to stay an election if there is sufficient evidence to withstand a motion for summary judgment that the county has not been divided into districts that comply with IC 36-2-2-4 **(before its expiration on January 1, 2031), IC 36-2-2-4.1(d) (after December 31, 2030),** or IC 36-2-3-4. A preliminary hearing on the question may be held upon the court's own motion.

(b) Final judgment on the merits in such a case shall be made within thirty (30) days of the stay of election order. If the redistricting is found not to be in compliance with law, the court shall retain jurisdiction and shall order the proper officials to submit within thirty (30) days a redistricting plan complying with law. If the proper officials fail to comply with the order, the court shall order the Indiana election commission to divide the county into districts in compliance with law."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1342 as introduced.)

WESCO

Committee Vote: yeas 9, nays 1.

HB 1342—LS 7077/DI 144

